



January 6, 2026

SENATE BILL No. 57

DIGEST OF SB 57 (Updated January 5, 2026 12:09 pm - DI 140)

Citations Affected: IC 4-13; IC 4-13.6; IC 4-37; IC 10-18; IC 14-8; IC 14-9; IC 14-10; IC 14-12; IC 14-20; IC 14-21; IC 34-30; IC 35-52.

Synopsis: Historic sites. Establishes the division of historic sites (division) in the department of natural resources. Transfers management of historic sites from the Indiana state museum and historic sites corporation to the division. Makes conforming changes. Makes an appropriation.

Effective: July 1, 2026.

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December 8, 2025, read first time and referred to Committee on Natural Resources.
January 5, 2026, reported favorably — Do Pass; reassigned to Committee on Appropriations.

SB 57—LS 6306/DI 148



January 6, 2026

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

SENATE BILL No. 57

A BILL FOR AN ACT to amend the Indiana Code concerning natural and cultural resources and to make an appropriation.

Be it enacted by the General Assembly of the State of Indiana:

- 1 SECTION 1. IC 4-13-2-20, AS AMENDED BY P.L.9-2024,
2 SECTION 91, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
3 JULY 1, 2026]: Sec. 20. (a) Except as otherwise provided in this
4 section or IC 12-8-10-7, payment for any services, supplies, materials,
5 or equipment shall not be paid from any fund or state money in
6 advance of receipt of such services, supplies, materials, or equipment
7 by the state.
8 (b) With the prior approval of the budget agency, payment may be
9 made in advance for any of the following:
10 (1) War surplus property.
11 (2) Property purchased or leased from the United States
12 government or its agencies.
13 (3) Dues and subscriptions.
14 (4) License fees.
15 (5) Insurance premiums.
16 (6) Utility connection charges.
17 (7) Federal grant programs where advance funding is not

SB 57—LS 6306/DI 148



prohibited and, except as provided in subsection (i), the contracting party posts sufficient security to cover the amount advanced.

(8) Grants of state funds authorized by statute.

(9) Employee expense vouchers.

(10) Beneficiary payments to the administrator of a program of self-insurance.

(11) Services, supplies, materials, or equipment to be received from an agency or from a body corporate and politic.

(12) Expenses for the operation of offices that represent the state under contracts with the Indiana economic development corporation and that are located outside Indiana.

(13) Services, supplies, materials, or equipment to be used for more than one (1) year under a discounted contractual arrangement funded through a designated leasing entity.

(14) Maintenance of equipment and maintenance of software if there are appropriate contractual safeguards for refunds as determined by the budget agency.

(15) Exhibits, artifacts, specimens, or other unique items of cultural or historical value or interest purchased by the state museum.

(16) Exhibits, artifacts, specimens, or other unique items of cultural or historical value or interest purchased by the division of historic sites.

(c) Any agency and any state educational institution may make advance payments to its employees for duly accountable expenses exceeding ten dollars (\$10) incurred through travel approved by:

(1) the employee's respective agency director, in the case of an agency; and

(2) a duly authorized person, in the case of any state educational institution.

(d) The state comptroller may, with the approval of the budget agency and of the commissioner of the Indiana department of administration:

(1) appoint a special disbursing officer for any agency or group of agencies whenever it is necessary or expedient that a special record be kept of a particular class of disbursements or when disbursements are made from a special fund; and

(2) approve advances to the special disbursing officer or officers from any available appropriation for the purpose.

(e) The state comptroller shall issue the state comptroller's warrant to the special disbursing officer to be disbursed by the disbursing



1 officer as provided in this section. Special disbursing officers shall in
2 no event make disbursements or payments for supplies or current
3 operating expenses of any agency or for contractual services or
4 equipment not purchased or contracted for in accordance with this
5 chapter and IC 5-22. No special disbursing officer shall be appointed
6 and no money shall be advanced until procedures covering the
7 operations of special disbursing officers have been adopted by the
8 Indiana department of administration and approved by the budget
9 agency. These procedures must include the following provisions:

10 (1) Provisions establishing the authorized levels of special
11 disbursing officer accounts and establishing the maximum
12 amount which may be expended on a single purchase from special
13 disbursing officer funds without prior approval.

14 (2) Provisions requiring that each time a special disbursing officer
15 makes an accounting to the state comptroller of the expenditure
16 of the advanced funds, the state comptroller shall request that the
17 Indiana department of administration review the accounting for
18 compliance with IC 5-22.

19 (3) A provision that, unless otherwise approved by the
20 commissioner of the Indiana department of administration, the
21 special disbursing officer must be the same individual as the
22 procurements agent under IC 4-13-1.3-5.

23 (4) A provision that each disbursing officer be trained by the
24 Indiana department of administration in the proper handling of
25 money advanced to the officer under this section.

26 (f) The commissioner of the Indiana department of administration
27 shall cite in a letter to the special disbursing officer the exact purpose
28 or purposes for which the money advanced may be expended.

29 (g) A special disbursing officer may issue a check to a person
30 without requiring a certification under IC 5-11-10-1 if the officer:

31 (1) is authorized to make the disbursement; and

32 (2) complies with procedures adopted by the state board of
33 accounts to govern the issuance of checks under this subsection.

34 (h) A special disbursing officer is not personally liable for a check
35 issued under subsection (g) if:

36 (1) the officer complies with the procedures described in
37 subsection (g); and

38 (2) funds are appropriated and available to pay the warrant.

39 (i) For contracts entered into between the department of workforce
40 development or the Indiana commission for career and technical
41 education and:

42 (1) a school corporation (as defined in IC 20-18-2-16); or



(2) a state educational institution;
the contracting parties are not required to post security to cover the amount advanced.

SECTION 2. IC 4-13.6-2-3, AS AMENDED BY P.L.166-2013, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3. (a) This article applies to every expenditure of public funds, regardless of their source, including federal assistance money, by any governmental body for any public works project.

(b) This article does not apply to the following:

- (1) The Indiana commission for higher education.
- (2) State educational institutions.
- (3) Military officers and military and armory boards of the state.
- (4) The state fair commission.
- (5) Any entity established by the general assembly as a body corporate and politic having authority and power to issue bonds to be secured and repaid solely by revenues pledged for that purpose. However, such an entity shall comply with this article if the law creating the entity requires it to do so.
- (6) The Indiana department of transportation, except to the extent that the Indiana department of transportation uses the services provided by the department under this article.
- (7) The Indiana state museum and historic sites corporation.

SECTION 3. IC 4-37-1-3, AS ADDED BY P.L.167-2011, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3. "Chief executive officer" refers to the chief executive officer of the Indiana state museum and historic sites corporation appointed under IC 4-37-2-5 and the director of the state museum.

SECTION 4. IC 4-37-1-4, AS ADDED BY P.L.167-2011, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4. "Corporation" refers to the Indiana state museum and historic sites corporation established by IC 4-37-2-1.

SECTION 5. IC 4-37-1-6, AS ADDED BY P.L.167-2011, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 6. "Fund" refers to the state museum and historic sites development fund established by IC 4-37-7-1.

SECTION 6. IC 4-37-1-7, AS ADDED BY P.L.167-2011, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 7. "Historic site" ~~refers to a state historic site established and maintained by the board under the criteria established by the board.~~ **has the meaning set forth in IC 14-20-1.5-4.**

SECTION 7. IC 4-37-1-8 IS REPEALED [EFFECTIVE JULY 1,



2026]. Sec. 8. "Museum" refers to the state museum.

SECTION 8. IC 4-37-1-9, AS ADDED BY P.L.167-2011, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 9. "State ~~museums~~ museum" refers to the following:

(1) ~~The~~ state museum located in the White River State Park.

(2) ~~The historic sites.~~

SECTION 9. IC 4-37-2-1, AS ADDED BY P.L.167-2011, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. The Indiana state museum ~~and historic sites~~ corporation is established.

SECTION 10. IC 4-37-2-8, AS ADDED BY P.L.167-2011, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 8. (a) After June 30, ~~2011~~, 2026, rules that concern the division of state museums and historic sites that were adopted by the natural resources commission **to govern the state museum** shall be treated as rules applying to the corporation.

(b) After June 30, 2026, rules that concern the division of state museums and historic sites that were adopted by the natural resources commission to govern historic sites shall be treated as rules applying to the division of historic sites (IC 14-20-1.5).

~~(b)~~ (c) After June 30, ~~2011~~, 2026, a reference to the department of natural resources in a statute or rule concerning the division of state museums and historic sites' **management of the state museum** shall be treated as a reference to the corporation.

(d) After June 30, 2026, a reference to the department of natural resources in a statute or rule concerning the division of state museums and historic sites' management of historic sites shall be treated as a reference to the division of historic sites (IC 14-20-1.5).

SECTION 11. IC 4-37-4-1, AS ADDED BY P.L.167-2011, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. The title to the following shall be held in the name of the State of Indiana:

(1) Property constituting the state ~~museums~~, **museum**, except to the extent that the property is subject to a use and occupancy agreement between the Indiana finance authority and the Indiana department of administration.

(2) Property acquired by the board.

SECTION 12. IC 4-37-4-2, AS ADDED BY P.L.167-2011, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. The board shall do the following:

(1) Operate and administer the state ~~museums~~: **museum**.



(2) Maintain accreditation of the state ~~museums~~ **museum**.

(3) Collect, preserve, display, and interpret artifacts and materials reflecting the cultural and natural history of Indiana.

(4) Prepare and maintain a statewide inventory of the artifacts and materials described in subdivision (3).

(5) Uphold the highest professional and ethical standards, as adopted by the American Association of Museums.

SECTION 13. IC 4-37-4-3, AS AMENDED BY P.L.189-2018, SECTION 18, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3. The board may do the following:

(1) Do any and all acts and things necessary, proper, or convenient to carry out this article.

(2) Hold meetings under IC 5-14-1.5 at the times and places in Indiana that are prescribed by the board's bylaws.

(3) Adopt an official seal.

(4) Adopt bylaws.

(5) Make and execute contracts and other instruments necessary or convenient to the exercise of the board's powers.

(6) Acquire by grant, purchase, gift, devise, or lease or otherwise and hold, use, sell, lease, manage, operate, clear, improve, encumber, transfer, convey, exchange, or dispose of the following:

(A) Real and personal property and any interest in real or personal property.

(B) Facilities.

(C) Money or stocks.

(D) Any right or interest necessary or useful for carrying out the board's powers and duties under this article.

(7) Procure insurance against any loss in connection with the board's operations.

(8) Enter into contractual or other arrangements with the Indiana department of administration in connection with the financing of the state ~~museums under IC 4-13.5~~ **museum**.

(9) Notwithstanding IC 4-13.5-4-5 (before its repeal), allocate space in museums financed by the Indiana finance authority. ~~under IC 4-13.5~~.

(10) Fix and collect rents, admission charges, fees, tolls, and other user charges for:

(A) the state ~~museums~~ **museum**;

(B) restaurants;

(C) other facilities; and

(D) programs, lectures, classes, tours, and trips.



(11) Maintain shops and restaurants on property that the board manages and at other locations and employ or contract with persons to manage the shops and restaurants.

(12) Make or sell the following:

(A) Pictures, models, books, and other representations of the **state** museum and its artifacts and exhibits.

(B) Souvenirs, crafts, art, videotapes, digital video discs, and other merchandise.

(13) Pay royalties, license fees, or charges for exhibits, artifacts, artwork, or materials.

(14) Own copyrights, trademarks, and service marks and enforce the board's rights with respect to ownership.

(15) Conduct market research concerning the state ~~museums~~ **museum**.

(16) Adopt rules under IC 4-22-2 to carry out the purposes of this article.

SECTION 14. IC 4-37-4-3.5 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 3.5. The board shall not do the following:**

(1) Operate and administer historic sites.

(2) Maintain accreditation of historic sites.

SECTION 15. IC 4-37-4-4, AS AMENDED BY P.L.166-2013, SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4. ~~(a) The board may accept or refuse to accept an offered gift of historic property to be administered by the board.~~

~~(b) (a)~~ Notwithstanding IC 4-20.5-7 and IC 5-22-22, the board may improve, encumber, sell, lease, transfer, convey, or exchange historic property administered by the board.

~~(c) (b)~~ Notwithstanding IC 5-22-22, the board may, in accordance with the board's policies, sell, donate, or exchange artifacts in the state ~~museums'~~ **museum's** collections to or with other public or nonprofit museums or historical societies.

~~(d) (c)~~ **Subject to subsection (d)**, the board may by rule establish a procedure for evaluating the merits of proposals to:

(1) accept gifts of;

(2) sell;

(3) encumber;

(4) transfer;

(5) convey; or

(6) exchange;

artifacts or historic property.

(d) The board may not establish by rule any procedure that



impacts a historic site.

(e) The board may donate or make short term loans of artifacts in the ~~museums'~~ **state museum's** collections to other:

(1) public or nonprofit museums; ~~or~~

(2) historical societies; ~~or~~

(3) historic sites.

SECTION 16. IC 4-37-5-2, AS ADDED BY P.L.167-2011, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. The board shall do the following:

(1) Establish policies for the governance and management of the ~~staffs~~ **staff** of the state ~~museums;~~ **museum.**

(2) Establish the rights and duties of corporation employees, including a pay scale and benefit package.

(3) Employ or contract with consultants, attorneys, or other persons as are required in the judgment of the board and pay compensation from funds available to the board.

SECTION 17. IC 4-37-5-5, AS ADDED BY P.L.167-2011, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 5. (a) The board may hire, fix the compensation of, review the performance of, and dismiss, subject to the governor's approval, a chief executive officer who:

(1) is the director of ~~the state museums;~~ **museum;**

(2) is the chief administrative officer of the corporation; and

(3) supervises and directs the work of the state ~~museums' staffs~~ **museum's staff** and contractors.

(b) The chief executive officer may hire, fix the compensation of, review the performance of, and dismiss employees of the corporation.

SECTION 18. IC 4-37-5-7, AS ADDED BY P.L.167-2011, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 7. The board may assist in the professional development of the ~~museums' staffs;~~ **state museum's staff.**

SECTION 19. IC 4-37-6-2, AS ADDED BY P.L.167-2011, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. The board may qualify the **state** museum for federal and other aid to preserve historic property, materials, items, and memorials.

SECTION 20. IC 4-37-7-1, AS ADDED BY P.L.167-2011, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. The state museum ~~and historic sites~~ development fund is established. The corporation or an entity designated by the board shall administer the fund.

SECTION 21. IC 4-37-7-5, AS ADDED BY P.L.167-2011,



SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 5. ~~Except as provided in section 8 of this chapter,~~
The following shall be deposited in the fund:

- (1) Proceeds from admission and user fees.
- (2) Sales at ~~the state~~ museum ~~shops:~~ **shop.**
- (3) Facility rentals.
- (4) Restaurant sales.
- (5) Any other income generated by the state ~~museums:~~ **museum.**
- (6) Gifts of money or the proceeds from the sale of gifts donated to the state ~~museums:~~ **museum.**

SECTION 22. IC 4-37-7-7, AS ADDED BY P.L.167-2011, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 7. The chief executive officer shall report annually to the board and the budget committee on the activities, revenues, expenditures, and profits of the ~~museums'~~ **state museum's:**

- (1) shops;
- (2) facility rentals; and
- (3) restaurants.

SECTION 23. IC 4-37-7-8 IS REPEALED [EFFECTIVE JULY 1, 2026]. Sec. 8: (a) The chief executive officer of the corporation may enter into a memorandum of understanding with one (1) or more nonprofit organizations that are recognized supporters of a specific state historic site and are exempt from taxation under Section 501(c)(3) of the Internal Revenue Code. The memorandum of understanding may provide that the nonprofit organization or organizations may maintain a gift shop and offer special events at the state historic site.

(b) A memorandum of understanding entered into under this section may not do any of the following to restrict the fundraising activities of an organization described in subsection (a):

- (1) Require the organization to deposit into the fund the proceeds of a fundraising activity approved by the chief executive officer.
- (2) Require the organization to send money donated to the organization to the corporation.
- (3) Require the approval of the chief executive officer, or the chief executive officer's designee, before the organization pursues general donations from individuals and other entities.
- (4) Restrict, regulate, or limit the ability of the organization to hold offsite fundraising programs or activities.
- (5) Restrict, regulate, or limit the ability of the organization to promote or advertise any onsite or offsite fundraising programs or activities on social media, via electronic mail, on a website, or by any other means.



(c) A memorandum of understanding entered into under this section may not do any of the following:

(1) Require the organization to be any type of supporting organization (as the term is used in the Internal Revenue Code);

(2) Require a representative of the corporation to be a voting or nonvoting member of the organization's board of directors;

(3) Require the organization to submit to the corporation any organization documents, correspondence, electronic mail, or other data that are not required to be submitted by the Internal Revenue Service;

(4) Require the organization to submit an audit of the organization's funds;

(5) Restrict, regulate, or otherwise limit the ability of the organization to promote any onsite or offsite activities;

(6) Allow the corporation to take a nonprofit organization's real or financial assets;

(7) Require the organization to pay any rental or other fee to support an event at a state historic site that is sponsored by the organization or the corporation;

(d) The corporation shall return to the organization any funds raised by the organization and donated to the corporation that:

(1) are designated as donor restricted funds for a specific use in a historic site project; and

(2) are not used for the donor's specified use in the historic site project;

upon the completion of the historic site project.

SECTION 24. IC 4-37-7-9 IS REPEALED [EFFECTIVE JULY 1, 2026]. Sec. 9: The chief executive officer of the corporation shall enter into:

(1) a memorandum of understanding with the Indiana department of transportation providing for the Indiana department of transportation to maintain historical services provided to the various state historic sites;

(2) a memorandum of understanding with the department of correction providing for the department of correction to provide assistance in maintaining a state historic site; and

(3) a memorandum of understanding with the department of natural resources providing for the department of natural resources to provide:

(A) assistance or services to repair or clean up a state historic site if a natural disaster or severe weather (as defined in IC 36-8-21.5-7) has occurred; and



~~(B) assistance providing equipment to the state historic sites for special events.~~

SECTION 25. IC 4-37-9-1, AS ADDED BY P.L.167-2011, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. The **state** museum's great hall shall be known as the "Governor Frank O'Bannon Great Hall".

SECTION 26. IC 4-37-9-2, AS ADDED BY P.L.167-2011, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. The chief executive officer of the **state** museum shall install and maintain the following:

(1) Appropriate public signage on and around the **state** museum that displays the name of the great hall.

(2) A plaque located at an appropriate spot in the **state** museum describing the highlights of the life and career of Governor Frank O'Bannon.

SECTION 27. IC 10-18-1-10 IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 10. (a) The commission shall employ an individual who is responsible for the care and preservation of all personal property owned by the commission that has historic significance.

(b) The individual employed by the commission under subsection (a) must meet the qualifications set by the division of ~~state museums and historic sites of the department of natural resources~~. **(IC 14-20-1.5).**

SECTION 28. IC 14-8-2-16 IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 16. "Artifact", for purposes of **IC 14-20-1.5** and IC 14-21-1, has the meaning set forth in IC 14-21-1-2.

SECTION 29. IC 14-8-2-77, AS AMENDED BY P.L.127-2022, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 77. "Division" has the following meaning:

(1) For purposes of IC 14-9-8, the meaning set forth in IC 14-9-8-2.

(2) For purposes of IC 14-19-11, the meaning set forth in IC 14-19-11-2.

(3) For purposes of IC 14-20-1.5, the meaning set forth in IC 14-20-1.5-2.

~~(3)~~ **(4)** For purposes of IC 14-21, the division of historic preservation and archeology.

~~(4)~~ **(5)** For purposes of IC 14-22, the division of fish and wildlife.

~~(5)~~ **(6)** For purposes of IC 14-24, the division of entomology and plant pathology.



~~(6)~~ (7) For purposes of IC 14-25.5, the division of water.

~~(7)~~ (8) For purposes of IC 14-31-2, the meaning set forth in IC 14-31-2-4.

~~(8)~~ (9) For purposes of IC 14-32, the division of soil conservation of the Indiana state department of agriculture established by IC 15-11-4-1.

~~(9)~~ (10) For purposes of IC 14-37, the division of reclamation.

SECTION 30. IC 14-8-2-103, AS AMENDED BY P.L.167-2011, SECTION 3, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 103. (a) **Except as provided in subsection (b),** "foundation" refers to the Indiana natural resources foundation.

(b) **"Foundation", for purposes of IC 14-20-1.5, has the meaning set forth in IC 14-20-1.5-3.**

SECTION 31. IC 14-8-2-124, AS AMENDED BY P.L.167-2011, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 124. "Historic property", for purposes of **IC 14-20-1.5 and IC 14-21-1**, means:

(1) a historic site;

(2) a historic structure; or

(3) other personal or real property located on or in a historic site or historic structure.

SECTION 32. IC 14-8-2-125, AS AMENDED BY P.L.111-2016, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 125. "Historic site" has the following meanings:

(1) For purposes of IC 14-21-1, means a site that is important to the general, archeological, agricultural, economic, social, political, architectural, industrial, or cultural history of Indiana. The term includes adjacent property that is necessary for the preservation or restoration of the site.

(2) For purposes of **IC 14-20-1.5 and IC 14-22-6**, the meaning set forth in ~~IC 14-37-1-7~~. **IC 14-20-1.5-4.**

SECTION 33. IC 14-8-2-126, AS AMENDED BY P.L.167-2011, SECTION 7, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 126. "Historic structure", for purposes of **IC 14-20-1.5 and IC 14-21-1**, means a structure that is important to the general, archeological, agricultural, economic, social, political, architectural, industrial, or cultural history of Indiana. The term includes adjacent property that is necessary for the preservation or restoration of the structure.

SECTION 34. IC 14-8-2-230 IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 230. "Real property" has the following meaning:



(1) For purposes of IC 14-17, IC 14-17-2, ~~and~~ IC 14-18-6, **and IC 14-20-1.5**, includes an interest in real property, such as the following:

- (A) Any ownership interest in real property.
- (B) A leasehold.
- (C) A right-of-way.
- (D) An easement, including a utility easement.

The term does not include personal property or an interest in personal property.

(2) For purposes of IC 14-20-3, the meaning set forth in IC 14-20-3-1.

(3) For purposes of IC 14-20-6, the meaning set forth in IC 14-20-6-1.

(4) For purposes of IC 14-20-8, the meaning set forth in IC 14-20-8-1.

(5) For purposes of IC 14-20-9, the meaning set forth in IC 14-20-9-2.

(6) For purposes of IC 14-20-10, the meaning set forth in IC 14-20-10-1.

(7) For purposes of IC 14-33:

- (A) land;
 - (B) all buildings and fixtures on and appurtenant to land; and
 - (C) an estate created in:
 - (i) land; or
 - (ii) mines or minerals distinct from the surface of land;
- by deed, contract reservation in a conveyance, or otherwise.

SECTION 35. IC 14-8-2-258, AS AMENDED BY P.L.167-2011, SECTION 10, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 258. "Site", for purposes of **IC 14-20-1.5 and IC 14-21**, includes the following:

- (1) An aboriginal mound, a fort, an earthwork, a village location, a burial ground, a ruin, a mine, a cave, a battleground, a shipwreck, or other similar location on land or under water.
- (2) A location that contains or did contain a structure.

SECTION 36. IC 14-8-2-265.5 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 265.5. "State agency", for purposes of IC 14-20-1.5, has the meaning set forth in IC 14-20-1.5-5.**

SECTION 37. IC 14-8-2-268, AS AMENDED BY P.L.167-2011, SECTION 11, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 268. "Structure" has the following meaning:



(1) For purposes of **IC 14-20-1.5** and IC 14-21, a manmade construction.

(2) For purposes of IC 14-27-7.5, the meaning set forth in IC 14-27-7.5-5.

SECTION 38. IC 14-8-2-285.3 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 285.3. "Trustees", for purposes of IC 14-20-1.5, has the meaning set forth in IC 14-20-1.5-6.**

SECTION 39. IC 14-9-4-1, AS AMENDED BY P.L.127-2022, SECTION 11, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. The following divisions are established within the department:

- (1) Administrative support services.
- (2) Asset management.
- (3) Engineering.
- (4) Entomology and plant pathology.
- (5) Finance.
- (6) Fish and wildlife.
- (7) Forestry.
- (8) Historic preservation and archeology.
- (9) Human resources.
- (10) Land acquisition.
- (11) Law enforcement.
- (12) Management information systems.
- (13) Nature preserves.
- (14) Communications.
- (15) Reclamation.
- (16) State parks.
- (17) Water.
- (18) State land office.

(19) Historic sites.

SECTION 40. IC 14-10-3-1, AS AMENDED BY P.L.127-2022, SECTION 13, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. This chapter applies to the property managers of each of the following divisions of the department:

- (1) State parks.
- (2) Forestry.
- (3) Fish and wildlife.

(4) Historic sites.

SECTION 41. IC 14-12-2-14, AS AMENDED BY P.L.42-2024, SECTION 106, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 14. (a) The President Benjamin



Harrison conservation trust project commission is established.

(b) The project commission consists of the following ~~twenty (20)~~
twenty-one (21) members:

- (1) The director of the division of fish and wildlife.
- (2) The director of the division of forestry.
- (3) The director of the division of nature preserves.
- (4) The director of the division of state parks.
- (5) The chief executive officer of the Indiana state museum ~~and~~
~~historic sites~~ corporation established by IC 4-37-2-1.

(6) The director of the division of historic sites.

~~(6) (7)~~ The chairperson of the board of directors of the natural resources foundation.

~~(7) (8)~~ Ten (10) individuals appointed by the governor. The governor shall appoint individuals so that all the following are satisfied:

- (A) The individuals must be residents of Indiana.
- (B) The individuals must have a demonstrated interest or experience in:
 - (i) conservation of natural resources; or
 - (ii) management of public property.
- (C) There must be two (2) commission members from each of the following regions of Indiana:
 - (i) Northwest.
 - (ii) Northeast.
 - (iii) Southwest.
 - (iv) Southeast.
 - (v) Central.

~~(8) (9)~~ The following four (4) nonvoting members:

- (A) One (1) member of the house of representatives appointed by the speaker of the house of representatives.
- (B) One (1) member of the house of representatives appointed by the minority leader of the house of representatives.
- (C) One (1) member of the senate appointed by the president pro tempore of the senate.
- (D) One (1) member of the senate appointed by the minority leader of the senate.

(c) The individuals appointed by the governor under subsection ~~(b) (7)~~ **(b) (8)** must represent one (1) or more of the following:

- (1) The environmentalist community.
- (2) The land trust community.
- (3) Organized hunting and fishing groups.
- (4) The forest products community.



(5) The parks and recreation community.
Each group and community listed in subdivisions (1) through (5) must be represented on the project commission.

SECTION 42. IC 14-12-2-15, AS AMENDED BY P.L.1-2025, SECTION 179, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 15. (a) As used in this section, "appointing authority" refers to:

(1) the governor in the case of a member appointed under section ~~14(b)(7)~~ **14(b)(8)** of this chapter; or

(2) the speaker of the house of representatives, the minority leader of the house of representatives, the president pro tempore of the senate, or the minority leader of the senate in the case of a member appointed under section ~~14(b)(8)~~ **14(b)(9)** of this chapter, whichever is applicable.

(b) As used in this section, "member" refers to a member of the project commission appointed under section ~~14(b)(7)~~ **14(b)(8)** through ~~14(b)(8)~~ **14(b)(9)** of this chapter.

(c) The term of a member begins on the later of the following:

(1) The day the term of the member who the individual is appointed to succeed expires.

(2) The day the individual is appointed by the appointing authority.

(d) A member serves at the pleasure of the appointing authority. The term of a member expires as follows:

(1) June 30 of an odd-numbered year for a member appointed under section ~~14(b)(8)~~ **14(b)(9)** of this chapter.

(2) June 30, 2025, and each fourth year thereafter for a member appointed under section ~~14(b)(7)(C)(i); 14(b)(7)(C)(iii); 14(b)(8)(C)(i), 14(b)(8)(C)(iii), or 14(b)(7)(C)(v)~~ **14(b)(8)(C)(v)** of this chapter.

(3) December 31, 2025, and each fourth year thereafter for a member appointed under section ~~14(b)(7)(C)(ii)~~ **14(b)(8)(C)(ii)** or ~~14(b)(7)(C)(iv)~~ **14(b)(8)(C)(iv)** of this chapter.

(e) The appointing authority may reappoint a member for a new term.

(f) The appointing authority shall appoint an individual to fill a vacancy among the members. An individual appointed to fill a vacancy serves for the unexpired term of the individual's predecessor.

SECTION 43. IC 14-12-2-18, AS AMENDED BY P.L.42-2024, SECTION 110, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 18. (a) ~~Eight (8)~~ **Nine (9)** members of the project commission constitute a quorum.



(b) The affirmative vote of a majority of the voting members of the project commission present and voting is necessary for the project commission to take any action.

(c) A member of the project commission described in section 14(b)(1) through ~~14(b)(5)~~ **14(b)(6)** of this chapter may designate in writing a representative from the respective division to serve as a member of the project commission when the member of the project commission is unable to attend a meeting.

SECTION 44. IC 14-20-1.5 IS ADDED TO THE INDIANA CODE AS A NEW CHAPTER TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]:

Chapter 1.5. Division of Historic Sites

Sec. 1. As used in this chapter, "artifact" has the meaning set forth in IC 14-21-1-2.

Sec. 2. As used in this chapter, "division" refers to the division of historic sites established by IC 14-9-4-1.

Sec. 3. As used in this chapter, "foundation" refers to the Indiana historic sites foundation, established under section 23 of this chapter and managed by the trustees.

Sec. 4. As used in this chapter, "historic site" refers to a state historic site established and maintained by the trustees under the criteria established by the trustees.

Sec. 5. As used in this chapter, "state agency" has the meaning set forth in IC 4-1-13-1.

Sec. 6. As used in this chapter, "trustees" refers to the board of trustees for the division established by section 10 of this chapter.

Sec. 6.5. (a) On July 1, 2026, all real property, personal property, and artifacts used in the:

- (1) administration;
- (2) operation; or
- (3) acquisition;

of historic sites by the Indiana state museum corporation established by IC 4-37-2-1 are transferred to the division.

(b) On July 1, 2026, all powers, duties, assets, and liabilities of the Indiana state museum corporation regarding historic sites are transferred to the division.

(c) On July 1, 2026, the budget agency shall determine and transfer funds:

- (1) used to operate and maintain historic sites from the state museum development fund (IC 4-37-7-1); and
- (2) from any other account intended for the use of historic sites;



1 to the state historic sites development fund established by section
2 22 of this chapter.

3 (d) After June 30, 2026, all individuals:

4 (1) employed by the Indiana state museum; and

5 (2) working at a historic site;

6 shall become employees of the division.

7 Sec. 7. The division shall administer and develop the programs
8 and policies established by this chapter.

9 Sec. 8. The division may do the following:

10 (1) Undertake actions necessary to qualify the state for
11 participation in sources of federal aid to preserve historic
12 property, materials, items, sites, and memorials.

13 (2) Provide information on historic property, materials, items,
14 sites, and memorials within Indiana to federal, state, and local
15 governmental agencies, private individuals, and
16 organizations.

17 (3) Advise and coordinate the activities of local historical
18 associations, historical district commissions, historical
19 commissions, and other interested groups or persons.

20 (4) Provide technical and financial assistance to local
21 historical associations, historical district commissions,
22 historical commissions, and other interested groups or
23 persons.

24 (5) Develop a program of interpretation and publication of the
25 state's historical, architectural, and archeological resources.

26 (6) Collect and preserve objects of scientific and cultural
27 value representing past and present flora and fauna, the life
28 and work of mankind, geological history, natural resources,
29 the manufacturing arts, and fine arts.

30 Sec. 9. The division shall do the following:

31 (1) Establish standards and criteria for the acquisition of
32 historic properties and for the preservation, restoration,
33 administration, and operation of the sites and structures
34 acquired.

35 (2) Acquire by purchase, lease, or gift appropriate historic
36 sites and historic structures.

37 (3) Operate and administer the historic sites and historic
38 structures owned or acquired by the state in accordance with
39 this chapter.

40 Sec. 10. (a) The board of trustees for the division is established.

41 (b) The trustees consist of thirteen (13) members as follows:

42 (1) The director of the department, who serves as chairperson.



(2) Twelve (12) members appointed by the governor as follows:

(A) One (1) member of the foundation, nominated by the foundation.

(B) Two (2) members who are recognized supporters of historic sites.

(C) One (1) member who is a resident of Indiana's First Congressional District.

(D) One (1) member who is a resident of Indiana's Second Congressional District.

(E) One (1) member who is a resident of Indiana's Third Congressional District.

(F) One (1) member who is a resident of Indiana's Fourth Congressional District.

(G) One (1) member who is a resident of Indiana's Fifth Congressional District.

(H) One (1) member who is a resident of Indiana's Sixth Congressional District.

(I) One (1) member who is a resident of Indiana's Seventh Congressional District.

(J) One (1) member who is a resident of Indiana's Eighth Congressional District.

(K) One (1) member who is a resident of Indiana's Ninth Congressional District.

(c) A member appointed under subsection (b)(2)(A) through (b)(2)(E) serves an initial term that expires December 31, 2027, and then is appointed every fourth year thereafter. A member appointed under subsection (b)(2)(F) through (b)(2)(K) serves an initial term that expires December 31, 2029, and then is appointed every fourth year thereafter.

Sec. 11. Each appointed member of the trustees serves at the pleasure of the governor for a term of four (4) years.

Sec. 12. A vacancy on the board of trustees must be filled for the unexpired term in the same manner as for a full term.

Sec. 13. (a) Each member of the trustees who is not a state employee is entitled to the minimum salary per diem provided by IC 4-10-11-2.1(b). The member is also entitled to reimbursement for traveling expenses as provided under IC 4-13-1-4 and other expenses actually incurred in connection with the member's duties as provided in the state policies and procedures established by the Indiana department of administration and approved by the budget agency.



(b) Each member of the trustees who is a state employee is entitled to reimbursement for traveling expenses as provided under IC 4-13-1-4 and other expenses actually incurred in connection with the member's duties as provided in the state policies and procedures established by the Indiana department of administration and approved by the budget agency.

Sec. 14. The trustees shall select a vice chairperson from the trustees' membership for a term of one (1) year expiring September 1 following the selection. The division director is the secretary of the trustees.

Sec. 15. Seven (7) members of the trustees constitute a quorum.

Sec. 16. The trustees shall do the following:

(1) Nominate, when the position of division director is vacant, a person to be appointed by the director of the department to the position of division director. If the director of the department rejects a nominee's appointment, the trustees shall nominate another person.

(2) Recommend, when appropriate, the dismissal of a division director.

(3) Make recommendations concerning the salary ranges of the administrative, professional, and technical staff of the division.

(4) Review the budget needs and requests of the division and make recommendations concerning the needs and requests to the governor through the division director.

(5) Recommend that the department accept or reject, hold, or dispose of grants of property to be administered by the division for the purpose of preservation, research, or interpretation of significant areas, events, or grants to Indiana citizens for the purpose of preserving, studying, and interpreting archeological and natural phenomena, cultural trends, and accomplishments.

(6) Review, guide, and assist in the development of statewide outreach programs.

(7) Review, guide, and assist in the development of professionalism of the division's staff and operations.

(8) Review, recommend, and devise methods to enable the division to do the following:

(A) Increase the division's physical presence in Indiana.

(B) Expand educational resources.

(C) Meet storage needs.

(9) Develop a plan of growth to meet physical, program, and



financial needs for both the immediate and long range future of the division, monitor the plan at regular intervals, and ensure that the division stays within the developed plan.

(10) Recommend policies, procedures, and practices that the commission, the director of the department, and the division director serving as the secretary of the trustees shall consider.

(11) Give advice or make recommendations to the governor and the general assembly when requested or on the initiative of the trustees.

(12) Review the conduct of the work of the division. To implement this duty, the trustees have access at any reasonable time to copies of all records pertaining to the work of the division.

(13) Adopt bylaws consistent with this chapter for the division's internal control and management and file a copy of the bylaws with the division director.

(14) Hold meetings at the times and places in Indiana that are prescribed by the bylaws, but at least quarterly.

(15) Keep minutes of each regular and special meeting and file the minutes with the division director. The minutes are a public record.

(16) Promote the welfare of the division.

(17) Make recommendations concerning the administration of the historic site acquisition fund established by section 19 of this chapter.

Sec. 17. Trustees are not liable in an individual capacity for any act done or omitted in connection with the performance of duties under this chapter. This section does not apply to an act or omission that constitutes gross negligence or willful or wanton misconduct.

Sec. 18. (a) The commission may, on recommendation of the trustees, accept or refuse to accept an offered gift of historic property that would be administered by the department.

(b) The commission may, on recommendation of the trustees, sell or exchange historic property administered by the department under IC 4-20.5-7 or IC 5-22-22.

(c) The commission may, on recommendation of the trustees and in accordance with rules adopted by the commission under IC 4-22-2, sell, donate, or exchange artifacts in the historic sites' collection to or with other public or nonprofit museums or historical societies. However, the commission may donate an artifact in the historic sites' collection to a public or nonprofit



1 museum or historical society under this subsection only if the
2 museum or historical society is located in Indiana.

3 (d) The commission may, on recommendation of the trustees,
4 adopt rules under IC 4-22-2 to establish a procedure for evaluating
5 the merits of proposals to:

- 6 (1) accept gifts of;
- 7 (2) sell; or
- 8 (3) exchange;

9 artifacts or historic property.

10 Sec. 18.3. (a) The trustees may enter into a memorandum of
11 understanding with one (1) or more nonprofit organizations that
12 are recognized supporters of a specific historic site and are exempt
13 from taxation under Section 501(c)(3) of the Internal Revenue
14 Code. The memorandum of understanding may provide that the
15 nonprofit organization may maintain a gift shop and offer special
16 events at the historic site.

17 (b) A memorandum of understanding entered into under this
18 section may not do any of the following to restrict any fundraising
19 activity of an organization described in subsection (a):

- 20 (1) Require the organization to deposit into the state historic
21 sites development fund established by section 22 of this
22 chapter the proceeds of a fundraising activity approved by the
23 trustees.
- 24 (2) Require the organization to send money donated to the
25 organization to the division.
- 26 (3) Require the approval of the trustees, or the trustees'
27 designee, before the organization pursues general donations
28 from individuals and other entities.
- 29 (4) Restrict, regulate, or limit the ability of the organization
30 to hold an offsite fundraising program or activity.
- 31 (5) Restrict, regulate, or limit the ability of the organization
32 to promote or advertise any onsite or offsite fundraising
33 program or activity on social media, via electronic mail, on a
34 website, or by any other means.

35 (c) A memorandum of understanding entered into under this
36 section may not do any of the following:

- 37 (1) Require the organization to be any type of supporting
38 organization (as the term is used in the Internal Revenue
39 Code).
- 40 (2) Require a representative of the trustees to be a voting or
41 nonvoting member of the organization's board of directors.
- 42 (3) Require the organization to submit to the trustees any



organization documents, correspondence, electronic mail, or other data that are not required to be submitted by the Internal Revenue Service.

(4) Require the organization to submit an audit of the organization's funds.

(5) Restrict, regulate, or otherwise limit the ability of the organization to promote any onsite or offsite activities.

(6) Allow the trustees to take the organization's real or financial assets.

(7) Require the organization to pay any rental or other fee to support an event at a historic site that is sponsored by the organization or the trustees.

(d) The trustees shall return to the organization any funds raised by the organization and donated to the division that:

(1) are designated as donor restricted funds for a specific use in a historic site project; and

(2) are not used for the donor's specified use in the historic site project;

upon the completion of the historic site project.

Sec. 18.5. The trustees shall enter into:

(1) a memorandum of understanding with the Indiana department of transportation providing for the Indiana department of transportation to maintain historical services provided to the various historic sites; and

(2) a memorandum of understanding with the department of correction providing for the department of correction to provide assistance in maintaining a historic site.

Sec. 19. (a) The historic site acquisition fund is established. The division shall administer the historic site acquisition fund.

(b) The following shall be deposited in the historic site acquisition fund:

(1) Gifts of money to the historic site acquisition fund or the proceeds from the sale of gifts donated to the historic site acquisition fund.

(2) The proceeds from sales under this chapter.

(c) The treasurer of state shall invest the money in the historic site acquisition fund not currently needed to meet the obligations of the historic site acquisition fund in the same manner as other public money may be invested.

(d) The expenses of administering the historic site acquisition fund shall be paid from money in the historic site acquisition fund.

(e) The division may, on recommendation of the trustees,



1 purchase with money in the historic site acquisition fund artifacts
 2 for the historic sites' collection. All money accruing to the historic
 3 site acquisition fund is continuously appropriated for the purpose
 4 of this subsection.

5 (f) Money in the historic site acquisition fund at the end of a
 6 state fiscal year does not revert to the state general fund.

7 **Sec. 20. A person who:**

8 (1) knowingly; and

9 (2) without a permit;

10 alters historic property within the boundaries of property owned
 11 or leased by the state commits a Class B misdemeanor.

12 **Sec. 21. (a)** The division may, by contract, delegate the
 13 management of a historic site held and managed by the division to
 14 the foundation under terms the division considers acceptable.

15 (b) Under a contract entered into under subsection (a), the
 16 division may:

17 (1) provide office facilities and administrative support to the
 18 foundation;

19 (2) assign a division employee to administrative and program
 20 duties at a historic site;

21 (3) act in an advisory capacity for the foundation; and

22 (4) accept a donation on behalf of the foundation.

23 **Sec. 22. (a)** The state historic sites development fund is
 24 established for the purpose of promoting interest in and use of
 25 historic sites.

26 (b) The state historic sites development fund shall be
 27 administered by the division or an entity designated by the
 28 division. The state historic sites development fund consists of the
 29 following:

30 (1) Money appropriated to the state historic sites development
 31 fund by the general assembly.

32 (2) Revenue generated by exhibit fees.

33 (3) Concessions.

34 (4) Donations.

35 (5) Grants.

36 (6) Other miscellaneous revenue.

37 (c) Money in the state historic sites development fund at the end
 38 of a state fiscal year does not revert to the state general fund.

39 (d) The balance of the state historic sites development fund is
 40 continuously appropriated and may be used at the request of the
 41 division with the approval of the budget agency after review by the
 42 budget committee.



1 **Sec. 23. The trustees may, by adopting a resolution, designate an**
 2 **existing nonprofit corporation or establish a nonprofit subsidiary**
 3 **corporation, known as or to be known as the Indiana historic sites**
 4 **foundation, that is exempt from federal income taxation under**
 5 **Section 501(c)(3) of the Internal Revenue Code to solicit and accept**
 6 **private funding, gifts, donations, bequests, devises, and**
 7 **contributions.**

8 **Sec. 24. The foundation:**

9 **(1) shall use money received under section 23 of this chapter**
 10 **to carry out in any manner the purposes and programs under**
 11 **this chapter; and**

12 **(2) may deposit money received under section 23 of this**
 13 **chapter in an account or fund that is:**

14 **(A) administered by the foundation; and**

15 **(B) not part of the state treasury.**

16 **Sec. 25. The foundation is governed by a board of trustees who**
 17 **may appoint a director.**

18 **Sec. 26. Employees of the division shall provide administrative**
 19 **support for the foundation.**

20 **Sec. 27. The foundation is subject to compliance audits by the**
 21 **state board of accounts.**

22 **Sec. 28. The foundation is exempt under IC 6-2.5-5-16 from the**
 23 **state gross retail tax for transactions involving tangible personal**
 24 **property, public utility commodities, and public utility service.**

25 **Sec. 29. The foundation is exempt from the following:**

26 **(1) The requirements of IC 4-13-2-20 prohibiting payment in**
 27 **advance.**

28 **(2) The procurement requirements under IC 5-22.**

29 **SECTION 45. IC 14-20-6-3, AS AMENDED BY P.L.167-2011,**
 30 **SECTION 18, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE**
 31 **JULY 1, 2026]: Sec. 3. The real property shall be administered,**
 32 **maintained, managed, and controlled by the ~~Indiana state museum and~~**
 33 **historic sites corporation (~~IC 4-37-2-1~~) **division of historic sites (IC****
 34 **14-20-1.5) and shall be known as The James F.D. Lanier Home.**

35 **SECTION 46. IC 14-20-7-3, AS AMENDED BY P.L.167-2011,**
 36 **SECTION 19, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE**
 37 **JULY 1, 2026]: Sec. 3. The ~~Indiana state museum and historic sites~~**
 38 **corporation (~~IC 4-37-2-1~~) **division of historic sites (IC 14-20-1.5) may****
 39 **receive donations for the upkeep of the monument provided for in this**
 40 **chapter.**

41 **SECTION 47. IC 14-20-8-3, AS AMENDED BY P.L.167-2011,**
 42 **SECTION 20, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE**



JULY 1, 2026]: Sec. 3. The real property shall be administered by the ~~Indiana state museum and historic sites corporation (IC 4-37-2-1)~~ **division of historic sites (IC 14-20-1.5)** as a historic property and shall be known as the William S. Culbertson Mansion.

SECTION 48. IC 14-20-8-4, AS AMENDED BY P.L.167-2011, SECTION 21, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4. The ~~Indiana state museum and historic sites corporation (IC 4-37-2-1)~~ **division of historic sites (IC 14-20-1.5)** may receive the following:

(1) Donations for the maintenance of the mansion.

(2) Other money that is necessary to carry out this chapter.

SECTION 49. IC 14-20-9-1, AS AMENDED BY P.L.167-2011, SECTION 22, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. This section and sections 2 through 5 of this chapter do not apply if:

(1) the Wilbur Wright memorial is transferred to the Wilbur Wright Birthplace Preservation Society after June 30, 1995; or

(2) the ~~board of trustees of the Indiana state museum and historic sites corporation (IC 4-37-2-1)~~ **declares for the division of historic sites (IC 14-20-1.5) declare** the memorial to be surplus to the needs of the ~~state museum and historic sites corporation~~ **division of historic sites.**

SECTION 50. IC 14-20-9-4, AS AMENDED BY P.L.167-2011, SECTION 23, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4. The ~~Indiana state museum and historic sites corporation (IC 4-37-2-1)~~ **division of historic sites (IC 14-20-1.5)** shall administer the real property, which shall be known as the Wilbur Wright Birthplace.

SECTION 51. IC 14-20-9-5, AS AMENDED BY P.L.167-2011, SECTION 24, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 5. The ~~Indiana state museum and historic sites corporation (IC 4-37-2-1)~~ **division of historic sites (IC 14-20-1.5)** may do the following:

(1) Receive any appropriations made by the federal government to assist in memorializing the achievements of Wilbur Wright.

(2) Expend the money received from the federal government in conformity with this chapter or the federal law making the appropriation.

SECTION 52. IC 14-20-10-2, AS AMENDED BY P.L.167-2011, SECTION 25, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. The real property shall be administered by the ~~Indiana state museum and historic sites corporation (IC 4-37-2-1)~~



1 **division of historic sites (IC 14-20-1.5)** as a historic property and shall
 2 be known as the Ernie Pyle Birthplace.

3 SECTION 53. IC 14-20-12-3, AS AMENDED BY P.L.78-2019,
 4 SECTION 19, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 5 JULY 1, 2026]: Sec. 3. Thousands of Hoosiers all over the nation have
 6 contributed toward the moving and restoration of this historic house
 7 and because the house has already proven to be an outstanding tourist
 8 attraction and in keeping with our great American heritage, it is the
 9 intent of this chapter that the office of tourism development (before
 10 July 1, 2020) or the Indiana destination development corporation (after
 11 June 30, 2020), the ~~Indiana state museum and historic sites corporation~~
 12 ~~(IC 4-37-2-1)~~, **division of historic sites (IC 14-20-1.5)**, and other
 13 appropriate state boards and agencies give widespread publicity to this
 14 memorial by brochure, pamphlet, or other means.

15 SECTION 54. IC 14-20-16-1, AS AMENDED BY P.L.167-2011,
 16 SECTION 27, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 17 JULY 1, 2026]: Sec. 1. (a) The governors' portraits collection is placed
 18 in the custody of the Indiana state museum ~~and historic sites~~
 19 corporation (IC 4-37-2-1). The collection shall be permanently
 20 displayed in public areas of the state house under the supervision of the
 21 Indiana state museum ~~and historic sites~~ corporation, which is charged
 22 with its care and maintenance.

23 (b) The chief executive officer of the Indiana state museum ~~and~~
 24 ~~historic sites~~ corporation shall inspect each painting in the collection
 25 annually in the company of one (1) or more experts in the field of art
 26 conservation selected by the chief executive officer of the Indiana state
 27 museum ~~and historic sites~~ corporation.

28 (c) After the inauguration of each governor, the chief executive
 29 officer of the Indiana state museum ~~and historic sites~~ corporation, with
 30 the concurrence of the governor, shall select and commission an artist
 31 to paint the governor's portrait. The portrait must be hung in the
 32 permanent collection immediately following the completion and
 33 acceptance of the portrait by the chief executive officer of the Indiana
 34 state museum ~~and historic sites~~ corporation and the governor.

35 (d) The Indiana state museum ~~and historic sites~~ corporation shall
 36 include in its budget requests the amount the Indiana state museum ~~and~~
 37 ~~historic sites~~ corporation considers necessary to:

- 38 (1) provide for the proper care, maintenance, and display of the
- 39 governors' portraits collection; and
- 40 (2) commission the painting of an oil portrait of each governor for
- 41 the collection.

42 The Indiana state museum ~~and historic sites~~ corporation may use



appropriated funds or any other funds provided for these purposes.

(e) The chief executive officer of the Indiana state museum ~~and historic sites~~ corporation, in discharging the duties under this section, shall use the appropriate cultural and technical resources of the state, including the department, Indiana historical bureau, and the Indiana department of administration.

SECTION 55. IC 14-20-16-2, AS AMENDED BY P.L.167-2011, SECTION 28, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. (a) The governors' portraits fund is established as a dedicated fund to be administered by the Indiana state museum ~~and historic sites~~ corporation (IC 4-37-2-1). Money in the fund may be expended by the chief executive officer of the Indiana state museum ~~and historic sites~~ corporation exclusively for the preservation and exhibition of the state owned portraits of former governors of Indiana.

(b) The proceeds from the sale of items as directed by law or by the chief executive officer of the Indiana state museum ~~and historic sites~~ corporation, from gifts of money or the proceeds from the sale of gifts donated to the fund, and from investment earnings from any portion of the fund, shall be deposited in the governors' portraits fund.

(c) The treasurer of state shall invest the money in the fund not currently needed to meet the obligations of the fund in the same manner as other public money may be invested.

(d) All money accruing to the governors' portraits fund is continuously allotted and appropriated for the purposes specified in this section.

(e) Money in the fund at the end of the fiscal year does not revert to the state general fund.

SECTION 56. IC 14-21-1-13, AS AMENDED BY P.L.2-2007, SECTION 169, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 13. The division may do the following:

(1) Recommend the purchase, lease, or gift of historic property of archeological importance and make recommendations to the director, council, and commission regarding policies affecting the operation and administration of these sites and structures by the ~~section of historic sites of the division of state museums and~~ historic sites.

(2) Prepare and review planning and research studies relating to archeology.

(3) Conduct a program of education in archeology, either within the division or in conjunction with a postsecondary educational institution.



1 (4) Inspect and supervise an archeological field investigation
2 authorized by this chapter.

3 SECTION 57. IC 34-30-2.1-18, AS ADDED BY P.L.105-2022,
4 SECTION 12, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
5 JULY 1, 2026]: Sec. 18. IC 4-37-3-5 (Concerning actions of members
6 of the board of trustees for the Indiana state museum ~~and historic sites~~
7 corporation).

8 SECTION 58. IC 34-30-2.1-173.5 IS ADDED TO THE INDIANA
9 CODE AS A **NEW** SECTION TO READ AS FOLLOWS
10 [EFFECTIVE JULY 1, 2026]: **Sec. 173.5. IC 14-20-1.5-17**
11 **(Concerning actions of members of the board of trustees for the**
12 **division of historic sites).**

13 SECTION 59. IC 35-52-14-7.5 IS ADDED TO THE INDIANA
14 CODE AS A **NEW** SECTION TO READ AS FOLLOWS
15 [EFFECTIVE JULY 1, 2026]: **Sec. 7.5. IC 14-20-1.5-20 defines a**
16 **crime concerning altering historic property owned or leased by the**
17 **state.**



COMMITTEE REPORT

Mr. President: The Senate Committee on Natural Resources, to which was referred Senate Bill No. 57, has had the same under consideration and begs leave to report the same back to the Senate with the recommendation that said bill DO PASS and be reassigned to the Senate Committee on Appropriations.

(Reference is to SB 57 as introduced.)

GLICK, Chairperson

Committee Vote: Yeas 8, Nays 0

SB 57—LS 6306/DI 148

